# West Virginia Office of Technology Policy
## Retention Policy for Google Email, Chat, and Personal Drive Data

Effective Data: 03/15/2024

Policy Number: CIO-24-001

## Purpose

The purpose of this policy is to establish a uniform retention policy for end-user account data stored in the cloud.

W.Va. Code §5A-6-4 authorizes the Chief Information Officer (CIO) to establish information technology governance and enterprise standards to support a unified approach to information technology across state government.

## Scope

This policy applies to all user accounts created and managed by the WV Office of Technology.

## Policy

Agencies own the data created by or originating with the Agency, data transferred to the Agency from a third party, and all data that is the output of computer processing or other electronic manipulation of any data that was created by or in any way originated with the Agency, whether such data or output is stored on the Agency's hardware, WVOT's hardware or exists in any system owned, maintained or otherwise controlled by either the Agency or by WVOT.

The WVOT, as an IT service provider for Agencies, may hold or have access to data owned by the Agency. If Agencies delete their data stored outside the scope of this policy, WVOT only retains it for backup periods defined by the agency and provided to OT to support operational resiliency and IT service continuity. WVOT additionally makes available when requested certain long term storage or legal hold services for data that must be frozen or retained.

WVOT does not backup data stored on state owned computers.

User account data includes data associated with employee accounts, such as data stored in an employee personal cloud drive, an employee's email account, or chats. This data is owned by the Agency. Agencies may inspect or review data associated with an employee's personal drive, chat, or email account at any time by requesting that service from WVOT.

Retention Periods of Agency data stored in a cloud. The following shall be applied to all accounts created and managed by the WVOT.

| Data medium | Retention policy |
|---|---|
| Employee Email, Employee Cloud Drive and Delegated Mailboxes | Indefinite as long as account is active--<br>Once an account is deprovisioned, data will |

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|---|---|
| | be retained for 2 years. |
| Chats/Instant Messages | 365 days |

Should an Agency require a more restrictive retention period for chats/instant messages for user email, the Agency may request a custom retention period through the self-service portal. The Agency must include the justification (e.g. cite to federal law requiring different retention or business case) with the request. If an agency requires a more restrictive retention period, it must be applied to the entire agency.

When an account deprovision request is made, the agency may request that another employee be given access to the deprovisioned account to save any data associated with the account in another location, monitor the inbox, or perform any other functions necessary for business continuity. This request must be made within 30 days of the deprovisioning request.

**FOR ACCOUNTS CONTAINING DATA THAT MAY BE THE SUBJECT OF LITIGATION OR WHICH MAY OTHERWISE NEED TO BE PRESERVED, AGENCIES MUST REQUEST A LEGAL HOLD TO BE PLACED ON THE ACCOUNT.** Agency legal counsel or agency leadership may request a legal hold on any user account that needs to be preserved. The legal hold will remain on the account until the Agency notifies the WVOT the hold may be released. WVOT will bill the Agency for the cost of providing this service.

## Relevant Authority

W.Va. Code §5A-6-4

The request for legal holds can be accessed here.Cloud Data Retention (Legal Hold) Request